

MOTIONACCESS, LLC

automatic entrance solutions

Joseph Madden
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February 27, 2013

Ben Ho
Division Chief
CAL FIRE/Office of the State Fire Marshal
Fire Engineering/Arson & Bomb Division
1131 "S" Street
Sacramento, California 95811
Phone: (916) 445-8312

RE: MotionAccess Closer - CSFM Listing requirement

Dear Mr. Ben Ho,

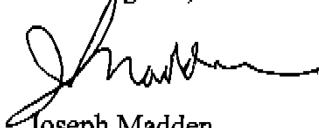
Could you please inform me if MotionAccess's Condor Swing Closer needs to be listed by the California State Fire Marshal to be used on a fire rated door? This product has been certified by an NRTL (MET labs) that it meets OSHA requirement of UL325.

If it does not need to be listed with the CSFM, could you please provide a letter that states that no listing is required? This letter would help greatly in eliminating any confusion with Local Fire Marshals, City Fire Chiefs, City Managers and MotionAccess's California Distributors.

Thank you for your time.

If you need any further information, please contact me.

Best Regards,



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**DEPARTMENT OF FORESTRY AND FIRE PROTECTION
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Joseph Madden
Motion Access, LLC
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Elk Grove Village, Illinois 60007

RE: State Fire Marshal Listing Requirement for Door Closers

Dear Mr. Madden:

This is in response to your letter dated February 27, 2013 requesting a clarification regarding State Fire Marshal (OSFM) listing requirement. California law requires that all fire alarm and fire alarm devices, Carbon Monoxide devices and wood roof shakes and shingles be approved and listed by the OSFM prior to being marketed, distributed, offered for sale, or sold in this state. Other products such as swing door closers are not required to be listed by the OSFM. However, if a door closer has an integrated smoke detector (a fire alarm device); it is required to be listed by the OSFM. The CSFM listing is strictly voluntary and the lack of CSFM listing is in no way prohibits you from marketing your products in California provided the product is tested, labeled and listed by a nationally recognized testing laboratory.

I hope this will clarify the issue. If you have any questions regarding this issue, please do not hesitate to contact me at (916) 445-8415 or by email at Ben.ho@fire.ca.gov.

Sincerely,

Ben Ho
Division Chief

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PLEASE REMEMBER TO CONSERVE ENERGY. FOR TIPS AND INFORMATION, VISIT "FLEX YOUR POWER" AT WWW.CA.GOV.